

Submitted by Emily Feltren, Director of Government Relations

October 27, 2016

Ms. Karyn Temple Claggett
Acting Register of Copyrights
United States Copyright Office
101 Independence Avenue S.E.
Washington, D.C. 20559

RE: Section 1201 Study: Request for Additional Comments (81 F.R. 66296, Docket No. 2015-8)

Dear Ms. Temple Claggett:

The American Association of Law Libraries (AALL) thanks the Copyright Office for the opportunity to submit these comments in response to its September 27, 2016 Notice of Inquiry, Section 1201 Study: Request for Additional Comments. Equitable access to and preservation of information is of vital concern to our members and users. We appreciate the Copyright Office's diligence in requesting input from stakeholders as it considers potential suggestions for legislative revision.

I. A Permanent Exemption for Assistive Technologies for the Blind, Visually Impaired, or Print Disabled Should Be Adopted

AALL strongly supports a permanent exemption to section 1201 to facilitate access and use of works by the blind, visually impaired, or print disabled. The American Foundation for the Blind's earlier comments in this docket present a forceful argument for a permanent exemption.¹ Access to knowledge is essential for the functioning of a democratic society, and we should not make an entire segment of the population's access to these materials subject to "the continued successful participation of a private, nonprofit advocacy organization" in a triennial rulemaking.²

Such an exemption would also facilitate lasting compliance with the Marrakesh Treaty to Facilitate Access to Published Works for Persons Who Are Blind, Visually Impaired, or Otherwise Print Disabled. Article 7 of the Marrakesh Treaty explicitly requires that member states "shall take appropriate measures... to ensure that when they provide adequate legal protection and effective legal remedies against the circumvention of effective technological measures, this legal protection does not prevent beneficiary

¹American Foundation for the Blind, Comment on Section 1201 Study Docket No. 2015-8 (Mar. 4, 2016), <https://www.regulations.gov/document?D=COLC-2015-0012-0066>.

² *Id.* at 11.

persons from enjoying the limitations and exceptions provided for in this Treaty.”³ Compliance with the Marrakesh Treaty would require the triennial renewal of the exemption for the print disabled; a permanent exemption, however, avoids this waste of resources.

AALL supports exemption language that allows print disabled users to make use of self-help technologies in order to make works accessible. The ability to use self-help technology is particularly relevant for our libraries and patrons. Our libraries consist of, and our patrons make use of, specialized and scholarly materials in the law. These are, however, precisely the works that are least likely to be made available in an accessible format, as the cost of making an accessible version often dwarfs any potential economic benefit. Further, absent legislation mandating accessible versions of every work, there will always be a gap between the works available for those with and those without print disabilities. Allowing print disabled persons to use self-help technology would go a long way to ending the book famine, particularly among researchers seeking specialized materials.

II. A Permanent Exemption for Circumvention of Malfunctioning, Damaged, and Obsolete Technological Protection Measures Should Be Adopted

AALL supports a permanent exemption for circumvention of access controls that are malfunctioning, damaged, or obsolete. As we noted in our prior comments, libraries serve several important roles. Libraries are not simply *acquirers* of information, but are also *preservers* and *providers* of information. This is evident in all aspects of our profession, from repairing a book with pages falling out to the painstaking and detailed work of archival departments. Exemptions which support libraries’ preservation mission are needed, such as an exemption for circumventing obsolete, malfunctioning, and damaged access controls, as nonfunctioning technological protection measures lock libraries and researchers out of an ever-growing percentage of our cultural heritage.

An exemption for circumvention of obsolete technological protection measures is particularly important if libraries are to be able to take advantage of the ability to preserve materials under section 108. Indeed, the DMCA was the very statute that added language to section 108 allowing libraries to preserve materials stored in obsolete formats.⁴ To then prevent libraries from circumventing malfunctioning and obsolete technological protection measures defeats the purpose of this provision.

AALL continues to support a permanent exemption for libraries wishing to circumvent technological protection measures for the purposes of engaging in activities allowable under section 108. Alternatively, Congress should adopt language attaching liability for circumvention only in cases where the circumvention facilitates copyright infringement.

³ Marrakesh Treaty to Facilitate Access to Published Works for Persons Who Are Blind, Visually Impaired, or Otherwise Print Disabled, art. 7, June 27, 2013, http://www.wipo.int/wipolex/en/treaties/text.jsp?file_id=301019.

⁴ Digital Millennium Copyright Act, Pub. L. 105-304, § 404(E), 112 Stat. 2860, 2890.

The suggestion that permanent exemptions should be limited to only those exemptions which have consistently been sought and granted in the past ignores the fundamental inequities of the triennial rulemaking process. It is well-documented that navigating the rulemaking process requires a substantial outlay of time and effort from exemption proponents, who overwhelmingly consist of nonprofit and advocacy organizations with limited resources, who then must rely upon law school clinics or pro bono assistance.⁵ For example, while the Internet Archive successfully sought an exemption for software and video games protected by obsolete technological protection measures in 2003 and 2006, it was able to do so only due to the donation of “more than \$50,000 of pro-bono lawyer time” for the 2006 exemption alone.⁶ In this docket, the Cyberlaw Clinic at Harvard reiterated this imbalance, noting that it “logged approximately 575 hours of work” in assistance of a group of medical device researchers seeking an exemption.⁷ Indeed, law school clinics are so important to the rulemaking process that previous comments in this docket suggested reorienting the triennial rulemaking around the academic calendar.⁸ The Copyright Office acknowledged in its initial Notice of Inquiry that the rulemaking process “is resource-intensive for both participants and the Office.”⁹

III. Anti-Trafficking Provisions

AALL continues to support revising section 1201’s anti-trafficking provisions to allow for third-party assistance for beneficiaries of exemptions. It may be impossible to ensure that “tools manufactured and distributed pursuant to an exemption, once available in the marketplace, would be employed solely for authorized uses.”¹⁰ This, however, is also the case with computers, photocopiers, VCRs, and the internet. Banning technology necessary to facilitate lawful conduct because we cannot construct an absolute bar to unlawful conduct is not only regressive, it is also contrary to copyright’s purpose, to “promote the Progress of Science and useful Arts.”¹¹

An implied right permitting a beneficiary to make an anti-circumvention tool for her own use would not adequately address our concerns with the anti-trafficking provisions. Such an implied right would still require all beneficiaries to have the ability to make a circumvention tool on their own, without assistance from any third party. With such an

⁵ USC Intellectual Property and Technology Law Clinic, Comment Regarding Section 1201 Study Docket No. 2015-8 (Mar. 3, 2016) at 2-4, <https://www.regulations.gov/document?D=COLC-2015-0012-0056>.

⁶ Jeff Kaplan, *Internet Archive Helps Secure Exemption to the Digital Millennium Copyright Act*, Internet Archive Blogs (Nov. 29, 2006), <https://blog.archive.org/2006/11/29/internet-archive-helps-secure-exemption-to-the-digital-millennium-copyright-act/>.

⁷ Cyberlaw Clinic at Harvard Law School, Comment Regarding Section 1201 Study Docket No. 2015-8 (Mar. 3, 2016), <https://www.regulations.gov/document?D=COLC-2015-0012-0052>.

⁸ International Documentary Association, et al., Reply Comment Regarding Section 1201 Study Docket No. 2015-8 (Apr. 1, 2016) at 2, 4, <https://www.regulations.gov/document?D=COLC-2015-0012-0081>. The comments of these organizations of independent filmmakers, like those of many other exemption proponents, were prepared with the assistance of a law school clinic and pro bono counsel.

⁹ Library of Congress, U.S. Copyright Office, *Section 1201 Study: Notice and Request for Public Comment*, 80 Fed. Reg. 81,369, 81,371 (Dec. 29, 2015).

¹⁰ Library of Congress, U.S. Copyright Office, *Section 1201 Study: Request for Additional Comments*, 81 Fed. Reg. 66,296, 66,299 (Sept. 27, 2016).

¹¹ U.S. Const. art. 1, § 8, cl. 8.

implied right, a print disabled user who needs to circumvent an access control in order to use assistive technology must possess the skill and ability to create the means to circumvent the access control on her own, without assistance from any third party. Such a result effectively denies print disabled users without sophisticated computer skills from taking advantage of the exemption granted to them. As we noted in our earlier comments, this defeats the purpose of granting the exemption in the first place.

IV. Conclusion

AALL thanks the Copyright Office for undertaking this important inquiry into the operation of section 1201. We appreciate the opportunity to submit these comments.